

sum to which the infant is entitled. [But under the corresponding Irish Act, 14 & 15 Car. 2, c. 19 (*Ir.*) it has been held that the receipt of the testamentary guardian for a legacy of the infant is a good discharge (*a*); and in a recent case in England, Fry, J., while refusing payment to the testamentary guardian of a legacy which had been paid into Court under the Legacy Duty Act (*b*), on the special ground that the testamentary guardian was not a "person entitled" within the meaning of that Act, intimated that he had no intention of interfering with the decision in the Irish case (*c*); and] where an infant *cestui que trust* represented himself to be of age, and induced the trustee to pay him, it was held that as the infant was old enough to commit a fraud, the trustee was not liable to him over again when he came of age (*d*).

35. **Lunatic.**—The mere appointment by the Court of the *committee of the estate* of a lunatic, would not justify a trustee in paying trust-money, to which the lunatic is entitled, to the committee of his estate, in the absence of any special power to receive conferred upon him by the Court.

36. **Payment to a partner.**—Where a debt is owing to a firm jointly the amount may be paid to the surviving partners without the concurrence of the representatives of the deceased partners (*e*).

37. **Payment to a single trustee.**—The Court will not, in the exercise of its discretion, except under special circumstances (*f*), pay out money to a single trustee who has survived his co-trustees (*g*); and a trustee out of Court would do well to throw all the protection he can about a trust fund: but it must not be inferred that he would not be *safe*

[(*a*) *M'Creight v. M'Creight*, 13 Ir. Eq. R. 314.]

[(*b*) 36 Geo. 3, c. 52, s. 32.]

[(*c*) *Re Cresswell*, 45 L. T. N. S. 468; 30 W. R. 244.]

(*d*) *Overton v. Banister*, 3 Hare, 503; and see *Wright v. Snowe*, 3 De G. & Sm. 321; *Nelson v. Stocker*, 4 De G. & J. 458.

(*e*) *Philips v. Philips*, 3 Hare, 289.

(*f*) *Re Courts of Justice Concentration (Site) Act*, 1865, W. N. 1867,

p. 148. In *Clark v. Fenwick or Fenick*, W. N. 1873, p. 38, 21 W. R. 320, the Court ordered a sum of cash, the accumulation of income, to be paid to three out of four trustees, the fourth trustee being abroad.

(*g*) *Re Dickinson's Trust*, 1 Jur. N. S. 724; *Re Roberts*, 9 W. R. 758; and see *Baillie v. McKewan*, 35 Beav. 183; *Re Dickson's Estate*, 3 I. R. Eq. 344; and note to s. 32 of Trustee Act, 1850, *post*, Appendix No. 2.